Galveston County District Court

Cause No. 2025-CV-0025

Megan Martin, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	2-12-25
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant denies each and every allegation contained in Plaintiff's Original Petition, and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant generally denies the allegations and requests that Plaintiff be required to prove the charges and allegations against Defendant by a preponderance of the evidence.

For further answer, and without assuming any budren of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses.

First, Plaintiff's own negligence proximately caused or contributed to the incident. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by the percentage of responsibility attributable to Plaintiff, and if Plaintiff is more than fifty percent responsible, Plaintiff may not recover.

Second, Defendant invokes proportionate responsibility under Chapter 33, and requsets that the trier of fact assign percentages of responsibility to all persons and responsible third parties who caused or contributed to the harm, and that any judgment be limited accordingly.

Third, Plaintiff failed to mitigate damages by failing to follow reasonable medical advice and by failing to seek timely treatment, and any recovery must be redcued by the amount that reasonable mitigation would have avoided.